

DEPARTMENT OF THE NAVY

NAVSUP WSS

5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg			Type	A1
Folder #		232301677			PD #	N0010423XA484
Item Manager	Kennedy, Catherine	Work Function	Planner	Phone		Code
						N96
Technician	Boushard, Jason	Work Function	Reprocurement Technician	Phone		Code
						N9652.14
Buyer	Williams, Marsha	Work Function	Contract Specialist	Phone		Code
						N713.22

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature		COMPRESSOR,REFRIGER		Quantity		2
NSN		4130014695749		Cage Code		
P/N		364-48511-002		Unit Price		\$457,069.50
Option	Y	Option %	100	Days	180	
Estimated Value		\$914,139.00 (\$1,828,278.00 with option)				

Ship To

Period of Performance: Expected Final Delivery Date

04/09/2025

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

JOHNSON CONTROLS NAVY SYSTEMS LLC- (66935) Based on the market research performed by the technical advocate, it is concluded that the only source of procurement is JOHNSON CONTROLS NAVY SYSTEMS LLC- (66935). It has been deemed uneconomical to pursue the acquisition of the data because the data and its content are not available. There are no authorized substitutes of this item as this is the only item known to meet performance and compatibility requirements within the higher assembly (32A000044 AIR CONDITION PLANT). Furthermore, there is no data to support an open and full competition. The item has to be tested per approved testing specifications procedures, embedded coding procedures, design protocols, and internal QA requirements. The Government does not own the data, or the rights to the data needed to openly compete this procurement requirement. The source listed above, who is the OEM, is the only source that maintains the design and manufacturing standards via design drawings, manufacture procedures, and quality assurance procedures. The Government does not have the data/or is not authorized to use the data, to approve alternate sources. Market research did not reveal, or identify any known distributors.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

05/11/2024

and as a result

No other sources expressed an interest in this requirement.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

A technical review, which consisted of searching several Government databases including ITIMP, FLIS and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved sourced of supply, historical sources of supply and past contracts. Based on this market research the contracting officer has determined that the only known procurement source is JOHNSON CONTROLS NAVY SYSTEMS LLC- (66935). If a company other than the one listed believes they have a compatible product, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office may test and evaluate the item at the company's expense, when appropriate. Upon qualification, the approved company will be able to participate in current or future solicitations. ITIMP- Reviewed award history and other potential sources of supply, AMC/AMSC code, part number, CAGE code. ERP- Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding which all matched with ITIMP. Market research did not reveal, or identify any known distributors.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A
Previous J&A Available in Workflow Pro

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Jason Boushard	Work Function	Reprocurement Technician	Created Date	04/09/2024 09-APR-24
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Catherine Kennedy	Work Function	Planner	Requirements Cognizance Signature Date	04/09/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Jason Boushard	Work Function	Reprocurement Technician	Technical Cognizance Signature Date	04/09/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Giovanna Poppleton	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	06/06/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	Adam Johnson	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	06/08/2024
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I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	Thomas Workman	Work Function	Attorney	Legal Sufficiency Review Signature Date	07/16/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304
Signature

John Sweeney



Work Function

Competition
Advocate

Approval Required
By Far 6.304
Signature Date

07/19/2024